

The Maharashtra Lokayukta and Upa-Lokayuktas (Competent Authorities) Rules, 1973

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State of Maharashtra - Act

The Maharashtra Lokayukta and Upa-Lokayuktas (Competent Authorities) Rules, 1973

MAHARASHTRA

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The Maharashtra Lokayukta and Upa-Lokayuktas (Competent Authorities) Rules, 1973

Rule THE-MAHARASHTRA-LOKAYUKTA-AND-UPA-LOKAYUKTAS-COMPETENT-AUTHORITIES-RULES-1973 of 1973

Published on 9 November 1973

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The Maharashtra Lokayukta and Upa-Lokayuktas (Competent Authorities) Rules, 1973

Published vide Notification No. G.N., G.A.D., No. LPL. 1173/20433-D-1, dated 9th November, 1973 (M.G., part 4B, page 1740)

In exercise of the powers conferred by sub-section (1), read with clauses (a) and (e) of sub-section (2) of section 20 of the Maharashtra Lokayukta and, Upa-Lokayuktas Act, 1971 (Maharashtra XLVI of 1971); and of all other powers enabling him in this behalf, the Governor of Maharashtra hereby makes the following rules, namely:

1.

Short title and commencement.

(1)

These rules may be called the Maharashtra Lokayukta and Upa-Lokayuktas (Competent Authorities) Rules, 1973.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires,

(a)

"Act" means the Maharashtra Lokayukta and Upa-Lokayuktas Act, 1971 (Maharashtra XLVI of 1971);

(b)

"Section" means a section of this Act;

(c)

Words and expressions used in the Act but not defined in these rules shall have the meanings assigned to them in the Act.

3.

Competent Authorities.

- The competent authority, in relation to a public servant (other than a Minister or a Secretary) specified in column (1) of the Table below shall be the authority specified against him in column (2) of that Table.

Table

Description of the public servant

Competent Authority

(1)

(2)

1.

Any public servant falling under the description given in sub-clause (ii) of clause (k) of section 2
The Secretary to the Government of Maharashtra
of the Department to which the public servant belongs or is subordinate.

2.

Any public servant falling under the description given in paragraph (a) of sub-clause (iii) of clause (k) of section 2.

The Secretary to the Government of Maharashtra,
Rural Development Department.

3.

Any public servant falling under the description given in paragraph (b) of sub-clause (iii) of clause (k) of section 2.

The Secretary to the Government of Maharashtra,
Urban Development, Public Health and Housing Department.

4. [

[Substituted by Notification No. IPL. 1079/1611/113-XI, dated 7.6.1979.]

Any public servant (other than the public servant specified as Competent Authority in column 2 opposite) falling under the description given in paragraph (a) of sub-clause (iv) of clause (k) of section 2.

The Municipal Commissioner, in case of a local authority which is a Municipal Corporation, in the service or pay of which the public servant is for the time being.

5.

Any public servant falling under the description given in paragraph (b), (c) and (d) of sub-clause (iv) of clause (k) of section 2.

The Secretary to the Government of Maharashtra of the Department controlling or concerned with the corporation (other than a local authority), the Company or the society, as the case may be, in the service or pay of which the public servant is for the time being.]

4.

Notice to public servant in case of investigation.

(1)

Where a Lokayukta or an Upa-Lokayukta proposes (after making such preliminary inquiry as the deems fit) to conduct any investigation under the Act, he shall send a notice in the Form given in the Schedule hereto appended to the public servant concerned, alongwith a copy of the complaint or in the case of any investigation which he proposes to conduct on his own motion, a statement setting out the grounds therefor. The notice shall require the public servant to submit his reply within the time specified therein or within such further time (if any) as may be granted.

(2)

A copy of such notice and of its accompaniments shall be sent to the competent authority concerned.

Schedule

(See rule 4)

In the Office of the| LokayuktaUpa-Lokayukta| Bombay

COM No. L/UL. No. of 20.....

Complainant;

versus

Public servant complained against

To

(Give name and address of the public servant)

Upon considering the material before him, the| LokayuktaUpa-Lokayukta| has decided to conduct an investigation under the Maharashtra Lokayukta and Upa-Lokayuktas Act, 1971 (Maharashtra XLVI of 1971),| in respect of the complaint made byon his own motion and a statement

(name and address of the complainant) against you and a copy of the complaint is appended. statement setting out the grounds therefor is appended.

Take notice that you are hereby required on or before (date) to file a statement in reply and to offer your comments and explanations supported by an affidavit and to produce true copies under your signature of the documents (if any) on which you want to rely in your defence.

Take further notice that if, on or before the date aforesaid you fail to appear in person to file the reply and offer your comments and explanation or fail to send the reply etc., by post or otherwise, the matter may be decided in your absence.

Given under my hand and the seal of the office.

Dated the Day of 20

Assistant Registrar.

Office of the| Lokayukta,Upa-Lokayukta,| Bombay.

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